

BOSCH DATA SERVICES AGREEMENT STANDARD TERMS AND CONDITIONS**DATA SERVICES AGREEMENT
SERVICE TERMS**

Effective Date:

4/3/2023

Client:

Dynamic Security Technologies, Inc.

Legal name

Dynamic Security Technologies, Inc.

Primary business address

28301 Industrial Blvd. Suite B Hayward, CA 94545

Jurisdiction of Incorporation

California

This Data Services Agreement is made and entered into as of the above Effective Date by and between Bosch Security Systems, Inc., a corporation having a place of business at 130 Perinton Parkway, Fairport, NY 14450 ("Bosch") and the Client identified above, (Client and Bosch are referred to as "Party" or "Parties," as the context requires). The entire Data Services Agreement consists of multiple documents; execution by Client of these Service Terms constitutes Client's agreement to all of the following: these Service Terms (and all Schedules and Exhibits thereto), the Bosch Data Services Standard Terms and Conditions (Schedule D), all Orders (Section 5 below), the Installer Services Portal Terms and Conditions (located on the Installer Services Portal), and the Bosch Data Services Acceptable Use Policy (Schedule E), each as may be updated by Bosch or amended by the Parties from time to time (collectively, the "Agreement"). **The capitalized terms used in the Agreement are in Section 1 of the attached Schedule D.**

SECTION 1 DELIVERY OF SERVICES

- 1.1 Delivery of Data Services. In consideration of the fees paid by Client to Bosch for the Services, during the Term and subject to the terms and conditions of this Agreement, Bosch shall:
- 1.1.1 Provide those Data Services set forth in the attached Schedule A that have been requested by the Client through an Order pursuant to Section 5 of these Service Terms; and
 - 1.1.2 Grant Client a limited, revocable, non-exclusive, non-sublicensable, non-transferable license to access and use the Data Services for the purposes of offering the Data Services to End Users for use by End Users to enable remote access to Bosch Products, pursuant to the Client-End User Agreement.
- 1.2 Delivery of Support Services. The Support Services provided to Client will include reasonable support in connection with: aiding in Account Service Access and setup, maintenance of Account details, technical support with Bosch Products in connection with Data Services, the Installer Services Portal and billing. Telephone support will be provided to Client by Bosch during regular business hours. Client will provide customer support services to End Users in connection with their use of Data Services. Bosch is not required

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to provide any customer support services to End Users in connection with the Data Services.

1.2.1 In relation to the delivery of the Support Services the Client shall:

- 1.2.1.1 On a timely basis make available and ensure the cooperation of the staff of the Client as are reasonably required to liaise with Bosch in relation to the provision of the Support Services;
- 1.2.1.2 Promptly furnish Bosch with such information, documents and instructions as Bosch may reasonably request for the proper performance of its obligations in connection with Support Services hereunder; and
- 1.2.1.3 Provide answers on a timely basis to queries, consents and approvals requested by Bosch to enable Bosch to provide the Support Services.

1.3 Associated Equipment; Bosch Products. The terms and conditions governing the provision by Bosch to Client of Associated Equipment and Bosch Products are governed by agreements that are separate from this Agreement.

1.4 Marketing of the Services. Client will solely use Services Documentation to promote and market the Services and will not use any other materials. Client will promote and market the Services as expressly dictated by the Services Documentation. Client will not create its own materials to promote the Services or alter or modify the Services Documentation in any manner. Bosch hereby grants to Client a limited, worldwide, non-exclusive, non-transferable, revocable, royalty-free license to use, display, publish and reproduce the Bosch Marks contained in and in accordance with the Services Documentation for the purpose of marketing the Services to End Users.

SECTION 2 AVAILABILITY OF THE SERVICES

2.1 Services Availability. Subject to an Order, Bosch shall use commercially reasonable efforts to ensure that the Services are available to the Client during the Initial Terms and Rolling Terms set forth in Section 7.1 of these Service Terms. Client agrees that Bosch will not be liable to Client, to an End User or to any third party for any modification, suspension, or discontinuance of the Services or any part thereof. Client agrees that any refund or rebate for such modifications, suspensions or discontinuations is not guaranteed and will be granted by Bosch in its sole discretion. Bosch does not offer any specific uptime guarantee for the Services. Bosch reserves the right, at any time, to modify, suspend, or discontinue the Services or any part thereof. Bosch will use commercially reasonable efforts to give to Client advance notice of modifications, suspensions or discontinuances of the Services.

SECTION 3 USE OF SIM CARDS & CELLULAR CONNECTIONS

3.1 Lost or Stolen SIM Cards. Bosch may provide SIM Cards to Client in connection with Cellular Data Services. If a SIM Card is lost, stolen or damaged the Client must notify Bosch of the same in writing or by phone as soon as reasonably practicable. The Client will remain liable for all charges incurred by the use of the SIM Card until the Client has notified Bosch as set forth in the immediately preceding sentence. After notification to Bosch of a lost, stolen or damaged SIM Card, by, and at the request of, the Client, Bosch shall provide a replacement. No charge will be imposed with respect to the replacement of

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- up to two (2) SIM cards during any one (1) month period; thereafter, Bosch reserves the right to charge the Client for issuing a replacement SIM Card(s).
- 3.2 Termination of SIM Card. The Client may terminate its use of any of the SIM Cards supplied to Client by Bosch as part of the Cellular Data Services at any time upon giving Bosch at least thirty (30) days' written notice in the form and manner required by Bosch from time to time, provided, that, the Client pays to Bosch the Monthly Service Charge and the Usage Charges through the end of such notice period without any set-off, withholding or deduction whatsoever.
- 3.3 Some Conditions of Cellular Connections and Associated Equipment. Subject to FCC number portability rules, Cellular Connections associated with Cellular Data Services shall at all times be the property of a Carrier, and Bosch may require the return or exchange of such Cellular Connections from time to time upon notice to Client in the normal course of its business when required to do so by the Carrier. In the event Bosch requests Client to return a Cellular Connection, Bosch shall use commercially reasonable efforts to (a) notify Client thirty (30) days in advance of any required returns or exchanges, subject to FCC number portability rules and any other timing requirements imposed by the Carrier, and (b) substitute an alternate Cellular Connection for such requested returned Cellular Connection. Client shall notify Bosch immediately if any Associated Equipment (i) is not in compliance with the terms and conditions contained herein, (ii) causes radio frequency interference with any Carrier's Network, (iii) degrades service on any Carrier's network, (iv) does not comply with Laws or regulations, (v) is stolen, (vi) has been used for fraudulent purposes, or (vii) is defective. Bosch reserves the right to suspend the wireless Cellular Data Services at the point of activation to any such Associated Equipment when the Associated Equipment is not in compliance with the terms and conditions contained herein or if any of the conditions in subsections (i) through (vii) above have not been resolved to Bosch's satisfaction.
- 3.4 Restriction on Number Assignment. A Cellular Connection may be associated with only one Bosch Product at any given time, unless Bosch provides prior written approval otherwise.
- 3.5 No Voice Services. Voice services for Cellular Connections are barred. Services may not be used for any non-data purpose.
- 3.6 Cellular Data Services Coverage Area. Client will provision the Cellular Connections to End Users only for use in the Coverage Area unless otherwise requested. Roaming charges will be incurred if the Cellular Connections are used outside of the Coverage area.
- 3.7 SIM Cards Risk of Loss. Risk of damage to, loss or unauthorized use of the SIM Cards or Associated Equipment will pass to the Client upon delivery thereof to Client and Client's receipt thereof.
- 3.8 Property of Carrier. The Client acknowledges and agrees and shall require each of its End Users to acknowledge and agree that, except to the extent otherwise provided by applicable Law, the Cellular Connections do not belong to the Client or to the End-Users. The Client shall not acquire any rights whatsoever in any of the Cellular Connections and shall make no attempt to apply for registration of the same as a trademark, whether on its own or in conjunction with another trademark(s). Should the Client wish to retain the Cellular Connections for use on another communications network, Bosch or a Third Party Provider

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may in its sole discretion release such Cellular Connections to the replacement network provider in accordance with applicable Law.

SECTION 4 THIRD PARTY SERVICE PROVIDERS; CERTAIN OBLIGATIONS REGARDING END USERS.

- 4.1 Third Party Service Providers. Client acknowledges and agrees that the Services are furnished to Client hereunder by Bosch and Bosch's Third Party Providers, and as a result, the Services (including the Third Party Provider Websites) and the Associated Equipment, rely on, or interoperate with, third party products and services that are beyond Bosch's control, and their operation may impact the use and reliability of the Services and the Associated Equipment (including for the avoidance of doubt Bosch Products).

Client expressly understands and agrees that it has no contractual relationship whatsoever with the underlying wireless service provider

- 4.2 Mobile Apps. Subject to the terms and conditions of this Agreement, Bosch has permitted Client to provide Services to End Users that are intended to give End Users remote access to certain Bosch Products, including through the Mobile Apps. By accessing or using the Mobile Apps, End Users must agree to the End User Mobile App Terms and Conditions. These End User Terms are between Bosch and the End User and are available for review and download or printing by End Users on the Installer Services Website and through links on the Apple Store and Google Play sites where the Mobile Apps are offered to End Users for download. The Mobile Apps may be used in conjunction with the Services, and Client will provide Support Services in connection with Mobile Apps to End Users. Client will: (a) ensure that the End Users comply with the End User Terms; and (b) include the End User Terms in the Client-End User Agreement. End Users may download the Mobile Apps free of charge; Client will not charge the End Users any fees to download the Mobile Apps but may charge others fees for usage of the Mobile Apps in connection with the Services provided by Client to End Users.
- 4.3 End User Authorization. Client will only provide Services to End Users for Bosch Products that have been expressly authorized through an End User Authorization. Each End User Authorization shall include a detailed explanation of the Services provided, including the manner in which the Client will access the Bosch Products to provide the Services and the kind of information from the End User to which the Client will have access when providing the Services (e.g., Client access to live footage of an End User's video camera placed in the End User's residence, for Services rendered for security-related purposes). Further, Client will keep written or electronic records evidencing such express authorization by the End User. Client will only access or have any connection to Bosch Products directly in connection with rendering the Data Services to End User.
- 4.4 Acceptable Use Policy. Client will use and provide the Services in accordance with the Bosch Data Services Acceptable Use Policy attached hereto as Schedule D.

SECTION 5 SERVICE ACCESS AND ORDERS

- 5.1 Service Access Process. Client will adhere to the following process in order to obtain

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Service Access: (a) The Client must register on the Installer Services Portal to create an Account; (b) After creating an Account, the Installer Services Team will send the Data Services Agreement to the Client for review and E-Signature (as defined in Section 8.3 herein) via the DocuSign electronic signature service; (c) After Client approval, the Agreement is sent back to the Installer Services Team for Bosch approval via the DocuSign service; (d) The Installer Services Team sets up the Client in the Bosch billing/tracking system and the Client is assigned a Customer Number; (e) The Installer Services Team will enter the Client information into the Third Party Provider Websites to create accounts with the Third Party Providers that are associated with the Client and Customer Number for the Services provided to Client; and (f) The Client will then be sent the login information for the Third Party Provider Websites that are accessible through the Installer Services Portal along with additional instructions. Each request for Service Access by Client must include all information required by Bosch in order for Bosch to process the request. Bosch may accept or reject such proposed requests in its sole discretion. For all notices and other communications with the Installer Services Team, Client will contact them using the following email address: installer.services@us.bosch.com.

- 5.2 Order Process for Activation of Data Services. At the time of Service Access, the Client has credentials and access to all of the available Data Services. After Bosch has authorized Service Access for the Client, the Client can choose to activate which Data Services that Client will procure for its End Users. The Client will be able to use and be billed for Services only if any Services are activated. To activate Services, the Client will use either the Third Party Provider Website or the Remote Programming Software (RPS) as specified in Schedule A for each Service. The Remote Programming Software (RPS) is provided to Clients as a separate service or product that does not include the Data Services and as such is not covered by this Agreement. Each proposed Order for Services will be subject to the pricing in the Data Service Plans attached hereto in Schedule B for the Services and/or other pricing agreed to in writing by the Parties. A proposed Order submitted by the Client will only be deemed to be accepted by Bosch or the Third Party Providers when confirmed in either the Third Party Provider Website (or the Remote Programming Software (RPS) if specified in Schedule A) for each Service.
- 5.3 Order Process for Deactivation of Data Services. If a Client chooses to deactivate a Service(s) (i.e., discontinue use and payment for a Data Service(s)), the Client is required to contact the Installer Services Team at installer.services@us.bosch.com to request deactivation of the specific Data Service(s). The Support Service Team will issue a support ticket recording the request. The Support Service Team will either deactivate the Data Service(s) directly or contact the Third Party Provider to deactivate the Data Service(s). A proposed Order to deactivate a Data Service submitted by the Client will only be deemed to be accepted by Bosch when confirmed by issuance of the support ticket. Final notification of deactivation can be verified in either the applicable Third Party Provider Website or the Remote Programming Software (RPS). In cases of emergency (evidence of End Users violating the Terms and Conditions, criminal activities or other events), the Client may be able to deactivate the Data Services directly from the Third Party Provider Websites, however no Order (i.e., record) will be issued or provided by the Installer Services Team and this method is used “as is” and at the Client’s own risk.
- 5.4 Accuracy. The Client will be responsible to Bosch for the accuracy of the Client-provided terms of any Order (including any applicable specifications) submitted by the Client.

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- 5.5 No Cancellations. No Order once submitted may be cancelled by the Client, except upon written approval by Bosch.
- 5.6 Conflicts. The Order will set forth the Data Services requested by the Client. If there is any conflict between Schedule B (and the associated Exhibit(s)) of this Agreement and an Order accepted by Bosch, the Order shall prevail and the conflicting terms in Schedule B shall not apply. Notwithstanding the foregoing sentence, if there is any conflict between the terms and conditions of this Agreement (other than Schedule B and its Exhibit(s)) and any Order, the terms and conditions of this Agreement shall supersede and control. .
- 5.7 Scope of Orders. Orders only cover the Services provided by Bosch herein. Any order made by a Client for Associated Equipment is governed by a separate agreement(s) between the Parties, and/or between the Client and an End User.

SECTION 6 CHARGES

- 6.1 General. The terms and conditions for Charges incurred under this Agreement by Client are set forth in Exhibit B-1 attached hereto.

SECTION 7 TERM & TERMINATION

- 7.1 Term. This Agreement shall commence as of the Effective Date and shall continue thereafter for one (1) year from the first date that Client has Service Access, unless terminated sooner by Bosch pursuant to Section 2.2 of the Bosch Data Services Standard Terms and Conditions (Schedule D) (such period, the “Initial Term”). After the Initial Term, this Agreement will continue so long as the Client continues to activate, access or use the Services until terminated by Client or Bosch in accordance with Section 7.2 of these Service Terms or Section 2.2 of the Bosch Data Services Standard Terms and Conditions (Schedule D) (“Rolling Term”).
- 7.2 Termination for Convenience. After any Minimum Term (as set forth in Exhibit B-1), Client may terminate the Cellular Data Services, Remote Connect Data Services and Home Control Services, or any portion thereof, upon thirty (30) days’ written email notice to Bosch sent to the Bosch Installer Services Team at installer.services@us.bosch.com, which notice will specify the Services requested for termination. The termination will occur at end of the current billing cycle; payment for Charges incurred for the remainder of the billing cycle at the time of termination will payable to Bosch. Bosch may terminate this Cellular Data Services, Remote Connect Data Services and Home Control Services upon thirty (30) days’ written notice to Client (which may include notice by electronic means). If the Client terminates any of the Data Services before the end of the applicable Minimum Term, the Client will be permitted to terminate in accordance with the process outlined above in this Section 7.2, but will also incur the Termination Charges set forth in Schedule B.

SECTION 8 ENTIRE AGREEMENT AND COUNTERPARTS

- 8.1 Entire Agreement. This Agreement and each of the Schedules attached hereto constitutes the entire agreement between the Parties, supersedes any previous agreement or understanding and may not be varied except in writing between the Parties.
- 8.2 Counterparts. The Agreement may be entered into in any number of counterparts and by the Parties to it on separate counterparts, each of which when so executed and delivered shall be an

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original. Signing and returning the Agreement without the Schedules or only the signature page shall constitute signature on the entire Agreement.

- 8.3 Electronic Signatures. Bosch has instituted a process by which agreements may be executed using an electronic signature (hereinafter referred to as “E-Signature”). As a condition of Bosch’s acceptance of any E-Signature, Client acknowledges and agrees that: Any E-Signature is the legal equivalent of Client’s manual signature; Client is legally bound by the terms and conditions of this Agreement bearing Client’s E-Signature; this Agreement will be electronically executed by authorized signers of the company. Client shall indemnify and hold Bosch harmless from and against any damages, losses or claims that arise out of the E-Signatures contemplated hereby.

- Signatures on the following page-

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IN WITNESS WHEREOF, authorized persons representing each party have executed this Agreement as of the date first set forth above.

BOSCH SECURITY SYSTEMS, INC.

(Bosch)

DocuSigned by:

By

Christina Cavuoto

7898855A1EF14D6

Signature of authorized representative

Christina Cavuoto

Printed or typed name

Service Specialist

Its

Title

BOSCH SECURITY SYSTEMS, INC.

(Bosch)

DocuSigned by:

By

Jeromy McIlwaine

4C5A40DAF22545C

Signature of authorized representative

Jeromy McIlwaine

Printed or typed name

Manager, Installer Services

Its

Title

[CLIENT NAME]

(Client)

DocuSigned by:

By

Dynamic Security

88D8A1329DC437

Signature of authorized representative

Dynamic Security

Printed or typed name

Company Manager

Its

Title

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Schedule A

Data Services

The following Data Services are provided under the Agreement, and are further described in the Exhibits to this Schedule A:

1. Cellular Data Services
2. Remote Connect Data Services
3. Home Control Services

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Exhibit A-1**Data Services Description – Cellular Data Services**

Cellular Data Services:	Network and data services enabling cellular communication between Associated Equipment and mobile applications, hosted applications or programming software. References to “cellular products” in this Exhibit shall mean Associated Equipment.
Private Cellular Network	The following cellular Network services will be provided on multiple carrier networks: • Private carrier data connections • SMS (Short Messaging Service) • Private IP segmenting • Internet gateway services
Cellular Data Services Service Plans	The available Service Plans and pricing are described in Schedule B. Service Plans define the following characteristics of the cellular Services: • Carrier Network (such as Verizon, AT&T, T-Mobile or Rogers) • Zone where plan is applicable (geographical area such as US or Canada) • Period of the Services and fixed fee (such as monthly) • Capacity of data or SMS (Short Message Service) messages included in the fixed Services fee for each cellular product (the Monthly Service Charge) • Overage Fees define the fees for data or SMS used within the Period above the allowed Capacity of the Service Plan • Pooling or sharing feature adds the total data capacity across subscribed cellular products using like Service Plans from the same Carrier (such that 3 products on the same 1Mb shared service plan share a total capacity of 3Mb of data. Overage fees would only apply to data usage from all 3 products exceeded 3Mb during the Period) • Billing Activation Trigger is the event that is used to start charging recurring Monthly Service Charges. Billing can start after a fixed time period (such as 90 days after activation) or FTU (First Time Use), which

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	is when the product starts communicating on the carrier cellular network.
Web Service API	Web services enable authorized API users to activate or deactivate cellular service, or change service plans from remote programming software
Cellular Data Services Management Portal	The Cellular Data Services Management Portal enables Bosch authorized installers to manage Data Services on Associated Equipment. It provides the following features: • Manage users and roles • View status of cellular products (such as IP address, phone number, service plan, carrier, activation date and online status) • Activate cellular service • Change Service Plans • View detailed statements • Generate reports
Data Watchdog	The Data Watchdog feature provides notification if a cellular product will exceed its Service Plan data capacity
VPN	VPN (Virtual Private Network) service enables communication from programming software to cellular products. Service is available in PPTP and IPSec
Mobile App Proxy	A proxy service allows authorized users to enable communication with cellular products from compatible hosted or mobile applications
Service Activation	Cellular Data Services can be activated through either the Cellular Data Services Management portal or through the remote programming software (RPS)
Service Plan Changes	Cellular Data Services plan changes (changing tiers or options) can be facilitated through either the Cellular Data Services Management portal or through the remote programming software (RPS). Each Service Plan change for Cellular Data Services constitutes a new Order and will take effect within 3 (three) days of acceptance of the Order by Bosch, and in no event will any such changes be retroactive.
Service Deactivation	Cellular Data Services can be deactivate or discontinued by contacting the Installer Services Team. A support ticket will be issued and the Cellular Data Services will be deactivated.

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Service Monitoring	Cellular Data Services activation and status can be monitored through either the Cellular Data Services Management portal or through the remote programming software (RPS).
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Exhibit A-2**Data Services Description – Remote Connect Data Services**

Remote Connect Data Services:	Hosted connectivity services enabling connectivity to Associated Equipment from: (1) mobile applications (also known as “Mobile Apps”) for Client-End User monitor of Bosch Products (“Remote Connect Mobile App Service”), (2) hosted applications or programming software specifically designed to configure Bosch Products remotely (“Remote Connect Programming Service”).
Remote Connect	Remote Connect Data Service provides communication relay services for initiating communication with Associated Equipment on a private IP network from outside the network. The following features are supported: • Installer communication from programming software to the Associated Equipment • End user communication from mobile applications to their Associated Equipment, as authorized by the installer
Service Plans	The available service plans and pricing are described in Schedule B. Service plans define the following characteristics of the cloud service: • Zone where plan is applicable (geographical area such as US or Canada) • Period of the Services and Monthly Service Charge • Billing the Client for Charges incurred for use of the Remote Connect Mobile App Services starts on the date Bosch makes these Services available to Client.
Web Services	Web services enable authorized Remote Portal users to view status, activate or de-activate cloud service from remote programming software

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Remote Portal	The Remote Portal enables Installers to manage cloud services on cloud compatible Associated Equipment. It provides the following features: • Manage Installer account contact information • Manage Installer users • View status of cloud compatible Associated Equipment (such as Cloud ID of Associated Equipment, service plan, activation date and online status) • Add or delete Associated Equipment
Service Activation	Remote Connect Data Services can be activated through either the Remote Connect Data Services portal or through the Remote Programming Software (RPS)
Service Plan Changes	Not applicable since there are no current Remote Connect Data Services plan changes available.
Service Deactivation	Remote Connect Data Services can be deactivated or discontinued by contacting the Installer Services Team. A support ticket will be issued and the Remote Connect Data Services will be deactivated. The Remote Connect Data Services can be deactivated from the Remote Connect Data Services portal, but this should be used only in cases emergency as no record will be filed with the Services Support Team.
Service Monitoring	Remote Connect Data Services activation and status can be monitored through either the Remote Connect Data Services portal or through the remote programming software (RPS)

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Exhibit A-3**Data Services Description – Home Control Services**

Description of Home Control Services (“Home Control”)	Hosted connectivity services, mobile applications and hosted applications enabling programming and control of Associated Equipment and supported wireless home control products.
Home Control Features	Home Control service provides communication relay services for initiating communication with Associated Equipment on a private IP network from outside the network. The following features are supported: • Installer communication from Installer Portal to the Associated Equipment • End User communication from Mobile Apps or the Home Control Portal to their Associated Equipment, as authorized by the Installer.
Service Plans	The available service plans and pricing are described in Schedule B (“Service Plans”). Service Plans define the following characteristics of the service: • Zone where Service Plan is applicable (geographical area such as US or Canada) • Capacity of video storage included in the Monthly Service Charge • The Home Control Services starts on the date Bosch makes these Services available to Client.
Home Control Installer Portal	The Home Control Installer Portal enables Installers to manage the Home Control Service on Associated Equipment. It provides the following features: • Manage Installer’s End Users • View status of Associated Equipment (such as ID of Associated Equipment, service plan, activation date and online status) • Add or delete Associated Equipment • Activate or de-activate services on Associated Equipment • Add or delete End Users to Associated Equipment and Home Control Portal

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	• Configure and program behavior of Home Control compatible Associated Equipment • Program behavior and interaction of Home Control devices and Associated Equipment for End Users
Home Control Portal and Mobile Application	The Home Control Portal enables End Users to control Associated Equipment. It provides the following features: • View status of Associated Equipment • Control alarm system and Home Control product behavior via the Portal or mobile applications
Service Activation	Home Control Services can be activated only through the Home Control Services Portal
Service Plan Changes	Not applicable since there are no current Home Control Services plan changes available for Clients
Service Deactivation	Home Control Services can be deactivated or discontinued by contacting the Installer Services Team. A support ticket will be issued and the Home Control Services will be deactivated. The Home Control Services can be deactivated from the Home Control Services portal, but this should be used only in cases of emergency as no record will be filed with the Services Support Team.
Service Monitoring	Home Control Services activation and status can be monitored through the Home Control Services portal

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Exhibit B-1

Data Services Pricing Terms and Conditions

- 1. Pricing Changes** Charges are subject to change upon thirty (30) days' written notice by Bosch to Client.
- 2. Watchdog** Service of convenience and carries no warranty. Please see the Agreement for more details on warranty disclaimers and limitations on liability.
- 3. Billing**

The Client shall pay all Charges (together with any applicable tax) set forth in the monthly Invoice without any set-off or counterclaim or other deduction within thirty (30) days of the date of the Invoice. Monthly Service Charges are charged to the Client on a monthly basis in advance for Services to be provided in the following month. Bosch will prorate the first month of Monthly Service Charges for any of the Services from the first date in the month in which the Services are first activated to Client to the start of the following month.

Usage Charges and any other one-time Charges (e.g., Termination Charges set forth in Schedule B) are charged to the Client on a monthly basis in arrears. Termination Charges are only charged to the Client if the Minimum Term is not met for a particular service.

Termination Charges for Cellular Services are equal to the monthly recurring fee, times the remaining term of a Cellular Connection (in months) and will be applied to the invoice immediately following the termination. Terminated Associated Equipment that are cellular products may not be reactivated. Termination Charges for Remote Connect Mobile App Services is a flat rate fee and is listed in Schedule B.

Billing invoices will be available and sent out on the 25th day of each month, and payment is due thirty (30) days thereafter.

Invoices will include reasonable detail regarding the amounts charged and may be posted electronically and/or mailed via hard copy.

Bosch's billing records shall be the sole records used to determine what Data Service was rendered and shall prevail over any records maintained by any other person or entity .
- 4. Surcharges/Taxes** Canadian Services subject to applicable V.A.T.

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All Charges quoted are exclusive of any sales, use, or value added taxes, for which the Client shall be liable for and Bosch will charge such taxes to Client from time to time.

The Client shall be responsible for all sales taxes, use taxes, value-added taxes and surcharges imposed by any federal, state or local governmental entity for the provision of Services or Charges otherwise payable by Client to Bosch hereunder, but excluding taxes based upon Bosch's income and any franchise taxes payable by Bosch.

5. Late Fees and Actions.

If any payment of Charges is not made by the due date indicated in an invoice, Bosch shall be entitled, without limiting any other rights it may have, to: (a) charge interest on the outstanding amount (both before and after any judgment) at the rate per annum of two percent (2%) above the "Prime Rate" in effect at such time as quoted in the *Wall Street Journal* from the due date until the outstanding amount is paid in full; and (b) suspend Data Service temporarily (in whole or in part), upon reasonable prior notice, though the Client remains liable to pay all Charges incurred during the suspension period until payment has been made.

6. Disputed Invoices

Client has no more than sixty (60) days to dispute invoice from the Invoice Date. Provided that the Client is not in arrears on any payments for Charges payable to Bosch, the Client may notify Bosch in writing, within sixty (60) days of the issuance of the invoice, of the nature and amount of the dispute and describe in reasonable detail the basis of the Client's dispute. For such disputed amounts the Parties will attempt to resolve such dispute promptly. Upon resolution of a dispute, Bosch will adjust its records if necessary and issue a new invoice to the extent a reduction is required, and the Client will pay the disputed amount, together with interest on the unpaid portion accruing at the rate specified in Section 5 of this Exhibit B-1 above within thirty (30) days of Client's receipt of Bosch's written confirmation of the resolution. If the Client does not give Bosch written notice of a disputed amount within sixty (60) days after the Invoice Date such Invoice will be deemed to be correct and shall become binding on the Client.

7. Method of Payment.

The only accepted method of payment for the Services will be through standard bank-issued credit cards. Client will provide the Client's credit card information directly to an independent credit card processor, a Third Party Provider, during the registration process for Client's Service Access. The Third Party Provider will

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store this information for purposes of enabling the Client to pay for Charges.

**8. Cellular Data Services –
Additional Terms and
Conditions**

Pooling. Permitted amongst shared plans only from the same Carrier.

Overages. Clients are liable for all overage charges.

Ex-US Charges. Non-US operator rate plans are based on foreign currencies. Bosch has built rate plans using current conversion rates and reserves the right to update the rate plan within 30 days written notice if exchange rates fluctuate.

Roaming. Usage incurred when roaming is not included as part of a Service Plan's inclusive amount.

Suspending Cellular Connections. A Client imposed Cellular Connection suspension is subject to a monthly suspension fee and is charged at the plan MSC for the connection.

Surcharge. All US Cellular Data Charges are subject to 2.20% US surcharge unless otherwise noted.

Rounding. Data used is rounded to nearest kilobyte (kB) per Cellular Connection session for billing purposes.

Coverage Area. The Cellular Connections for all Carriers will be Provisioned for the Coverage Area only unless otherwise requested. Roaming Charges will be incurred if the Cellular Connections are used outside the Coverage Area.

Plan Changes. Take effect within three (3) days of receipt of the Client signature. Plan changes are not retroactive.

**9. Additional Terms and
Conditions**

Please see the other components to the Agreement, including the Standard Terms and Conditions, for additional terms and conditions regarding the Services.

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Schedule C

Minimum Requirements

- | | |
|-------------------------|--|
| Cellular Data Services: | <ul style="list-style-type: none">- requires use of compatible Associated Equipment bought from an authorized Bosch re-seller
- requires location of Associated Equipment to have adequate signal coverage from a supported Carrier Network |
| Remote Connect: | <ul style="list-style-type: none">- requires use of compatible Associated Equipment bought from an authorized Bosch re-seller
- requires location of Associated Equipment to have internet connectivity |
| Home Control: | <ul style="list-style-type: none">- requires use of compatible Associated Equipment bought from an authorized Bosch re-seller
- requires location of Associated Equipment to have internet connectivity |

Schedule D

BOSCH DATA SERVICES AGREEMENT STANDARD TERMS AND CONDITIONS

The following terms and conditions are part of the Data Services Agreement entered into between Bosch and Client.

SECTION 1 DEFINITIONS

Capitalized terms used but not defined in this Agreement shall have the meanings given below:

“Account” means the unique data set of Client-identifying information from Client required for Bosch to provide Services to the Client;

“Affiliate” means any person or entity that controls, is controlled by or is under common control with a Party, including its subsidiaries;

“Agreement” is defined on Page 1 of the Service Terms.

“Associated Equipment” means the purchased or already existing equipment required by Bosch for the Client and End Users to utilize the Services, including equipment provided by Third Party Providers such as SIM cards, equipment such as computers, routers and other gateways, and Bosch Products and minimum requirements are defined in Schedule C;

“Bosch Content” means Content supplied by Bosch or its Third Party Providers in connection with the Services;

“Bosch Indemnified Parties” means Bosch, its Affiliates and their respective officers, directors, employees, agents, and Third Party Providers;

“Bosch Marks” means the Bosch trade names, trademarks, service marks, logos or other similar indicia of identity or source furnished to Client by Bosch under the Agreement;

“Bosch Materials” means the Bosch Content, Mobile Apps, Installer Services Portal, Ideas, Services Documentation and Bosch Marks;

“Bosch Products” means certain Bosch security and home automation products purchased by the End User from an authorized Bosch dealer, and installed at an End User’s facility (for non-personal use by commercial and other entities) or residence (for personal use) by the Client or another authorized Bosch installer;

“Carrier” means the underlying third party wireless carrier(s) for a Data Service(s), and its Affiliates;

“Cellular Connection” means the ten (10) digit phone

number assigned to an End User by the Client to provide access to the Cellular Data Services set forth in Schedule A and any Exhibits thereto;

“Cellular Data Services” means those Data Services set forth in Exhibit A-1 hereto;

“Cellular Data Plan” means a tier or level of cellular service for Cellular Data Services set forth in Schedule A (and its associated Exhibits) as such Schedule (and Exhibits) may be updated from time to time by Bosch in its sole discretion;

“Charges” means the Monthly Service Charge, the Usage Charges and all other charges exclusive of taxes and any other additional surcharges payable to Bosch in connection with the provision of Services set forth in an Order;

“Claim” means actual or threatened action, audit, arbitration, suit, mediation, litigation, proceeding, examination, hearing, inquiry, investigation, charge, complaint, claim or demand;

“Client” means the person or entity identified above as such and Client’s employees, Client Subcontractors, agents and any other person or entity procuring or using the Services by or on behalf of Client (but not including End Users), who is also an authorized Bosch installer or dealer of Bosch Products;

“Client Content” means Content supplied by Client, Client Subcontractors and End Users regarding the Client, its employees and End Users including personally identifiable information such as email address, name, usage of Bosch Products, etc.;

“Client-End User Agreement” means the written agreement between the Client and each End User to provide Data Services to End Users enabling End Users’ remote access to their Bosch Products through use of the Mobile Apps;

“Client Systems” means the technology, equipment (including Associated Equipment) and other technical means that Client uses to access the Services including from third parties;

“Content” means all information whether textual, visual, audio or otherwise, which may include personally identifiable information, appearing on or made available

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through the Services whether supplied by Client, Client Subcontractors, End Users, Bosch, Bosch Subcontractors, Third Party Providers or other third parties;

“Coverage Area” means the United States and Canada;

“Customer Number” means a Bosch-assigned identifier that associates a Client in both Bosch’s and Third Party Providers’ systems for tracking Services selected and billing across Client, End Users, Bosch and Third Party Service Providers;

“Data Services” means Cellular Data Services, Remote Connect Data Services, Home Control Services and any other services provided by Bosch that are set forth in Schedule A and any Exhibits thereto, which may include data communications, home automation and connectivity services, together with access to the Network and the Cellular Connections, access to Content and the ability to post Client Content and the Bosch Materials, Installer Services Portal, Mobile Apps, Third Party Provider Websites and any customer support given to End Users by Client in connection therewith;

“End User” means any person or entity that the Client permits to use the Data Services under the terms and conditions of the Client-End User Agreement; provided that such person or entity shall not include (or shall have excluded there from) any person or entity that enters into or that is subject to a separate agreement with Bosch for same;

“End User Authorization” means the express authorization from an End User obtained by Client required to provide Services to End Users in connection with Bosch Products;

“End User Mobile App Terms and Conditions,” or “End User Terms” means those terms and conditions governing End Users use of the Mobile Apps including for remote access to the Bosch Products which is governed by a separate agreement as available on the Installer Services Portal and where Mobile Apps are available for download by End Users;

“Initial Term” means the definition in Section 7.1 of the Service Terms and refers to the Client has Service Access after the Data Services Agreement has been approved and signed by Bosch;

“Installer Services Portal” means the website provided by Bosch to allow the Client to access Invoices, pay for Charges, access Third Party Provider Websites and manage the Services, along with other features and functionality that may be available from time to time;

“Installer Services Portal Terms and Conditions”

means the agreement between Bosch and Client located on the Installer Services Portal governing Client’s use of the Installer Services Portal;

“Installer Services Team” means the Bosch support team that will aid Clients in the Service Access, billing and support of the Services;

“Intellectual Property Rights” mean any and all: (a) patents, reissues of and, re-examined patents, and patent applications (wherever filed and wherever issued, including continuations, continuations-in-part, substitutes, and divisions of such applications and all priority rights resulting from such applications) now existing and hereafter filed, issued or acquired; and rights to inventions; (b) rights associated with works of authorship, including copyrights, moral rights, copyright applications, copyright registrations, synchronization rights, mask work rights, mask work applications and mask work registrations; (c) trademarks, service marks, trade names, domain names, logos, trade dress, and the applications for registration and the registrations thereof and rights in goodwill; (d) rights in undisclosed or confidential information (such as know-how, trade secrets and inventions (whether patentable or not)), and other similar or equivalent rights or forms of protection (whether registered or unregistered);

“Invoice” means the statement sent or otherwise made available to Client by Bosch on a monthly basis setting forth the Charges payable to Bosch for the Services;

“Invoice Date” means the date on the Invoice;

“Law” means: (a) any and all laws, statutes, regulations, ordinances, or subordinate legislation in force from time to time to which a Party or its Affiliates is subject; (b) the common law; (c) any and all court orders, judgments, or decrees that are binding on a Party or its Affiliates; and (d) any and all directives, policies, rules, or orders that are binding on a Party or its Affiliates and that is made or given by a regulator, or other government or government agency, of, in the case of items (a) through (d) above, any country, or other national, federal, commonwealth, state, provincial, or local jurisdiction; and (e) any and all other proprietary rights arising under statutory or common Law, contract, or otherwise, and whether or not perfected and all applications (or rights to apply) for, and for renewals and extensions of, such rights as may now or in the future exist anywhere in the world, in all media, for all versions and elements, in all languages, and for the entire duration of such rights;

“Losses” means all losses, liabilities, obligations, and damages payable to third parties (including governmental or regulatory agencies) in connection with

BOSCH DATA SERVICES AGREEMENT STANDARD TERMS AND CONDITIONS

a Claim that is subject to indemnification under this Agreement, and all related costs and expenses (including reasonable legal and other professional fees and disbursements and costs of investigation, litigation, settlement, judgment, interest and penalties);

“Minimum Requirements” means Bosch’s minimum technical requirements required for Client to provide the Services to End Users are set forth in Schedule C, as such Schedule may be updated from time to time by Bosch in its sole discretion;

“Minimum Term” means the minimum term period (in months) to maintain and pay for services to avoid the Termination Charge as stated in Schedule B.

“Mobile Apps” means software provided by Bosch to the End User that may be downloaded to the End User’s mobile device (e.g., smartphone or tablet) for use in conjunction with the Services;

“Monthly Service Charge” means with respect to the Services, the standing monthly charge described out in the Exhibits to Schedule B hereto for continued activation of the Services, which is charged to the Client thirty (30) days before the date on which the Services are provided to the Client by Bosch. For the avoidance of doubt the Usage Charge is not part of the Monthly Service Charge and shall be charged separately;

“Network” means the combination of mobile public telecommunications and Internet/WAN systems provided by Third Party Service Providers and by which Data Services are made available;

“Order” means a request for activation or deactivation of Data Services from Bosch which is placed by the Client from time to time in accordance with this Agreement;

“Price List” means Bosch’s standard commercial charges schedule for Data Services and Support Services that is in effect when Data Services or Support Services are ordered by Client as such Exhibits may be updated from time to time by Bosch in its sole discretion;

“Remote Connect Data Services” means those Data Services that are set forth on Exhibit A-2 attached hereto;

“Rolling Term(s)” means the definition in Section 7.1 of the Service Terms.

“Service Access” means enabling Client access to Services, which includes setting up Clients in Bosch’s billing and tracking systems, providing pertinent Client information to Third Party Providers to enable the Services and attaining Client login and access information for the Third Party Provider Websites;

“Services” means the Data Services and Support Services;

“Services Documentation” means the materials provided by Bosch to Client for Client to use to promote and market the Services, including any marketing materials, documentation or any other materials describing the Services, including any description of how the Services work with the Bosch Products or any technical specifications;

“SIM Card” means the card issued by a Carrier to which a unique number is ascribed which, when used with compatible Associated Equipment, enables End Users to access the Data Services;

“Home Control Services” means those Data Services related to home and facility automation services set forth in Exhibit A-3 attached hereto;

“Subcontractors” means qualified third party providers performing obligations on behalf of Client or Bosch hereunder;

“Support Services” means the provision of technical advice and day-to-day account Client management and support;

Termination Charge” means those additional Charges imposed upon Client for terminating certain Services and set forth in Exhibit B-1. The Termination Charge is only applicable to the Client if the Minimum Term (labeled “Minimum Term (months)” in Schedule B) for the Service is not met;

“Third Party Providers” means any and all Carriers, licensors, suppliers, service providers and subcontractors of Bosch or its Affiliates;

“Third Party Services” means products, services, portions of the Services, Content or other materials that are owned or controlled by a third party, including the Third Party Provider Websites;

“Third Party Websites” means websites accessible through the Installer Services Portal provided by Third Party Providers that can be used by Client to monitor and manage certain Services;

“Usage Charges” means the variable charges for usage of Cellular Data Services specified in the Exhibit(s) to Schedule B including overage, roaming and other associated charges; and

“User IDs” means all user identification numbers, and related passwords, or other security measures Client uses to access the Services.

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SECTION 2 SUSPENSION AND ADDITIONAL TERMINATION RIGHTS

- 2.1 Suspension. Bosch has the right to immediately suspend the Services, in whole or in part, if: (a) Client's use of the Services poses a security risk to the service offerings or a third party; (b) Client's use of the Services may adversely impact the Services or systems or Content of any other client of Bosch, or may subject Bosch, its Third Party Providers or any third party to liability; (c) Client is not in compliance with the Bosch Data Services Acceptable Use Policy; or (d) Client is infringing upon the Intellectual Property Rights of Bosch or of Third Party Providers. None of the rights to suspend in this Section 2.1 will limit any of Bosch's remedies under this Agreement, at law or in equity and will not constitute liquidated damages.
- 2.2 Termination. Bosch may (without limitation of any other remedy at law or in equity) at any time terminate the Agreement or the provision of the Services, in whole or in part, under the Agreement immediately by notice in writing to the Client at any time if:
- 2.2.1 Client fails to pay the Charges within thirty (30) days of the due date for payment, which is not subject to the cure period in Section 2.2.2 below;
- 2.2.2 Client breaches this Agreement, and such breach is incapable of cure, or with respect to a breach capable of cure, the Client does not cure such breach within twenty-one (21) days after Client's receipt of written notice from Bosch specifying the breach;
- 2.2.3 Client (a) begins liquidation or dissolution proceedings, (b) files any petition or action for relief under any bankruptcy, reorganization or insolvency Law; (c) assigns a substantial portion of its assets for the benefit of its creditors; (d) or has a receiver or administrator appointed; (e) Client is unable to pay its debts as they fall due; or (f) the Client ceases or threatens to cease to carry on its business in the ordinary course.
- 2.2.4 Bosch has received notice from any of its Third Party Providers that all or a portion of the Services will no longer be provided to Bosch; or
- 2.2.5 An act or omission of Client, a Client Subcontractor or an End User gives

rise to Bosch's right to suspend the Services in Section 2.1 above.

- 2.3 Certain Termination Obligations. On termination or expiry of the Agreement or the provision of Services under the Agreement:

- 2.3.1 Client's right to use the SIM Cards, including Cellular Connections shall terminate immediately and all such Cellular Connections shall be re-assigned to Bosch and the Termination Charge shall become immediately due and payable. The Client shall immediately return to Bosch all SIM Cards supplied by Bosch to the Client during the duration of the Agreement;
- 2.3.2 Any Cellular Connections reserved for the Client's use but which have not been used by the Client or the End-Users or connected to Bosch' Network shall be re-assigned to Bosch immediately;
- 2.3.3 Bosch shall cease to provide Services to Clients and the End Users as of the date of termination. Client shall provide reasonable written notice to the End Users, of any disconnection of Services caused by termination of this Agreement and otherwise comply with any other legal requirements thereto.

- 2.4 Termination and Financial Obligations. Termination of this Agreement shall not release Client from any financial obligation owed to Bosch, or any financial obligations that might subsequently accrue as the result of any act or omission of Client or Client Subcontractors occurring prior to termination or from any of Client's obligations which are to survive termination.

SECTION 3 CONFIDENTIALITY

- 3.1 Confidential Information. In this clause "Confidential Information" shall mean all information disclosed by a party (each, the "Disclosing Party") to the other party (each, the "Receiving Party") in any form or manner, relating to the Agreement; relating to the parties' businesses, customers, products, developments, trade secrets, know-how or personnel; and any item of information that would appear to a reasonable person to be confidential or is specifically stated by the Disclosing Party to be confidential. "Confidential Information" does not include information that (i) is in the possession of the receiving party free of any obligation of

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confidentiality at the time of its disclosure; (ii) is or becomes publicly known other than by a breach of this Section 3; (iii) is received without restriction from a third party free to disclose it; or (iv) is developed independently by the receiving party without reference to the Confidential Information.

- 3.2 **Obligations.** The Receiving Party will take all reasonable care to keep confidential all Confidential Information disclosed to, or obtained by the Receiving Party under or as a result of the Agreement, and will not divulge such information to any third party or use such Confidential Information except as necessary to exercise its rights under this Agreement. Without prejudice to the foregoing, such information may be divulged where this is necessary for the proper performance of the Agreement and providing the Receiving Party ensures that the recipient of such information is under a like obligation to that spelled out in this clause. In addition, no liability will attach in relation to Confidential Information which, through no fault on the Receiving Party's part, enters the public domain. The obligations and restrictions imposed by this clause shall survive the termination or expiry of the Agreement. If the Receiving Party is compelled by Law to disclose Confidential Information, it shall provide Disclosing Party with prior notice of such compelled disclosure (to the extent legally permitted and if practicable) and with reasonable assistance, at the Disclosing Party's cost, if the Disclosing Party wishes to contest the disclosure.

SECTION 4 CLIENT CONTENT

- 4.1 **Right to Access and Use - Bosch.** Subject to the terms and conditions of this Agreement, Client hereby grants to Bosch, its Affiliates and Third Party Providers a non-exclusive, perpetual, irrevocable, worldwide, fully-paid, license (with the right to grant and authorize sublicenses) to access and internally use Client Content for the purposes of performing and providing the Services, customer support and technical services, incorporating into Bosch's customer database to provide the Services; administration; billing and reconciliation and analysis thereto; verification of Client and End User identity; maintenance and support; and product development and improving the Services; sales, revenue and customer analysis and reporting; market analysis; and creating reports with non-personally identifiable, aggregated information derived from the Client

Content, which reports may be shared by Bosch with Bosch's clients. The Client acknowledges that personal information, such as names, email addresses and usage information about Bosch Products may be available as part of Client Content. Client agrees and will ensure that End Users affirmatively agree in accordance with Section 4.3 of the Service Terms (End User Authorization) so that Bosch may exercise the rights to Client Content granted to Bosch under this Agreement. The Parties shall ensure that they shall at all times comply with the provisions and obligations imposed by applicable Laws in storing and processing personal data. Bosch shall use commercially reasonable efforts to prevent unauthorized access to or unauthorized use of the Client Content.

- 4.2 **User Submissions.** The Client hereby grants to Bosch a nonexclusive, perpetual worldwide, royalty-free, perpetual, irrevocable, sublicenseable and transferable right to access, display, or otherwise use the Client's and all End Users' Content submissions to "public" areas of the Services, such as user posts and reviews of the Services where Client and End Users have affirmatively decided to make Content available to all users of the Services (including all related Intellectual Property Rights), including the right to reformat, modify, create derivative works of, excerpt, and translate any such Client Content.

- 4.3 **Right to Access and Use - Client.** Subject to the terms and conditions of this Agreement, Bosch hereby grants to Client a non-exclusive right to access and internally use Bosch Content, for the sole purpose of providing the Data Services to End Users including monitoring Client's account status; testing network connectivity; providing support and trouble-shooting for Associated Equipment; verifying the status of an Order, for all other purposes and uses reasonably related to optimizing the Clients' provision, for or on behalf of End Users of the Services. For purposes of this Section 4.3, the Bosch Content shall only include information available to the Client on the Installer Services Portal and Services Documentation and other documentation related to the marketing or operation of the Services from Bosch. Client shall use commercially reasonable efforts to prevent unauthorized access to or unauthorized use of the Bosch Content.

- 4.4 **Password-Protected Access; User IDs and Passwords.** The Client will require its Client Subcontractors, other agents and employees to

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access to the Services solely by means of password-protected access. Bosch will grant to the Client user account administrative privileges to the relevant portions of the Services (including the Installer Services Portal), allowing Client Subcontractors and other agents and employees of Client to use the requisite User IDs to access the Services. Further, Client agrees to (i) restrict access to Client Content to those of its employees who have a need to know same as part of their official duties; (ii) prohibit its employees from using any information from the Client Content for personal reasons; (iii) keep all User IDs confidential and prohibit the sharing of User IDs; (iv) immediately deactivate the User ID of any employee who no longer has a need to access the Client Content, and for terminated employees, on or prior to the date of termination; (v) use or disclose the Client Content only as permitted by this Agreement or as required by Law; and (vi) require all Client Subcontractors or agents that receive or access the Client Content, to abide by the same obligations and restrictions as those assumed by Client under this provision.

SECTION 5 OWNERSHIP AND INTELLECTUAL PROPERTY

5.1 Ownership. Except for the licenses specifically set forth in this Agreement, each Party shall retain the exclusive right, title and interest in and to its respective Intellectual Property Rights, whether preexisting or otherwise, and in and to any and all Intellectual Property Rights that it may create in connection with this Agreement, and any and all derivatives of the foregoing. To the extent Client acquires any rights, title or interest in the Bosch Materials, it hereby irrevocably assigns, transfers and conveys to Bosch all of its right, title and interest in such Bosch Materials, including but not limited to, all Intellectual Property Rights in such Bosch Materials.

5.2 Bosch Property. Client acknowledges that all Intellectual Property Rights in the Services and Bosch Materials are owned by Bosch, its Affiliates or Third Party Providers. The Client's possession, access, and use of the Services do not transfer to the Client or to any third party any rights, title, or interest in or to such Intellectual Property Rights. Bosch, its Affiliates and Third Party Providers reserve all rights not granted in this Agreement. The Services are licensed to Client, not sold, under this Agreement.

5.3 Feedback. The Client may choose to, or Bosch may invite the Client to submit comments, suggestions, or ideas about the Bosch Materials or the Services, including how to improve the Bosch Products or any of the Services ("Ideas"). By submitting any Ideas and any and all Intellectual Property Rights relating to Ideas, the Client agrees that that Client's submissions are voluntary, gratuitous, unsolicited, and without restriction and will not place Bosch under any fiduciary or other obligation. The Client hereby grants to Bosch a nonexclusive, perpetual, irrevocable, worldwide, fully-paid, license (with the right to grant and authorize sublicenses) to make, have made, use, reproduce, modify, distribute, display, create derivative works of, perform and otherwise exploit such Ideas, and all Intellectual Property Rights therein, without restriction and without compensation to the Client. . The Client also agrees that Bosch does not waive any rights to use similar or related ideas previously known to Bosch, developed by its employees, or obtained from other sources.

5.4 Reservation of Rights. No license to any Intellectual Property Right is granted or implied by this Agreement except for the limited licenses expressly granted in Section 5.1 above.

SECTION 6 SUBCONTRACTORS

6.1 Subcontractors. Each shall have the right to subcontract to third parties, *provided*, that no subcontracting shall (a) release the subcontracting party from any of its obligations under this Agreement; (b) diminish or limit to any extent the subcontracting party's obligation to the other party, or (c) create a contractual relationship between the non-subcontracting party and the subcontractor. The subcontracting party will remain liable for the acts and omissions of any of its subcontractors or other agents (including employees) that perform any obligations hereunder on behalf of the subcontracting party.

SECTION 7 DOCUMENTATION

7.1 Documentation of Services and Associated Equipment. All information supplied to the Client by Bosch in relation to the Services or the Associated Equipment such as the descriptions and illustrations contained in the Bosch Installer Service Portal, Bosch's catalogues, websites, price guides and other

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advertising media (including any Bosch website) are approximate, being a general description by way of identification only and such information and descriptions will not in any circumstances constitute a sale by description, nor will any statement made in any such document, on Bosch's website or any other electronic media, or any other statement made, whether orally or in writing by or on behalf of Bosch, be deemed to be a representation or warranty by which the Client has been induced to enter the Agreement or upon which Client has relied on in any way. Client will not claim that it is entitled to the benefits of any representations, warranties, promises, descriptions of the Services or other statements not specifically set forth in this Agreement.

- 7.2 Documentation Errors. Any typographical, clerical or other error or omission in any sales literature, quotation, catalogue, acceptance of offer, invoice or other document or information issued by Bosch (including on the Bosch Installer Services Portal, Services Documentation or other affiliated website or in any Bosch Materials) may be corrected by Bosch in Bosch's sole discretion without any liability on the part of Bosch.

SECTION 8 ADDITIONAL RESTRICTIONS

- 8.1 Network Issue. The use of any device to route third party call traffic or other data services not related to this Agreement through the Network can cause capacity issues for the Network and may be illegal. The Client must obtain Bosch' prior written consent before operating any such devices on the Network.
- 8.2 Restricted Activities. The rights granted to Client in these Terms and Conditions are subject to the following restrictions: Client may not (i) except as expressly provided herein, rent, lease, sublicense, sell, transfer, assign, redistribute, host or otherwise commercially exploit the Services; (ii) modify, make derivative works of, disassemble, reverse compile, attempt to find the source code of, or reverse engineer any part of, the Services; (iii) access the Services in order to build a similar or competitive service; (iv) except as expressly stated herein, copy, reproduce, distribute, republish, download, post, display or transmit any part of the Services in any form or by any means; (v) upload, transmit or distribute any computer viruses, worms, or any software intended to damage or alter a computer or communication network,

computer, handheld mobile device, data, the Services, the Associated Equipment, or any other system, device or property; (vi) interfere with, disrupt or attempt to gain unauthorized access to, the servers or networks connected to the Services, or violate the regulations, policies or procedures of such networks; (vii) access (or attempt to access) any of the Services by means other than through the interface that is provided by Bosch; (viii) access or use the Services in a way intended to avoid incurring fees; and (ix) remove, obscure or alter any proprietary rights notices (including copyrights and trademark notices) which may be contained in or displayed in connection with the Services. Any future release, update, or other addition to functionality of the Services shall be subject to

SECTION 9 WARRANTIES, DISCLAIMERS, LIMITATIONS ON LIABILITY

- 9.1 Limited Warranties. Subject to the conditions of this Agreement, Client warrants as follows:
- 9.1.1 Client has the corporate power and authority to enter into, and perform its obligations under this Agreement;
- 9.1.2 Client will not make any unauthorized representation or warranty, whether written or oral, to any third party relating to any Services, the Bosch Materials, or with respect to Bosch;
- 9.1.3 Client has the right to grant the licenses to Bosch for Bosch's use of the Client Content as contemplated by this Agreement, including pursuant to Section 5.1 above; and
- 9.2 Subject to the conditions of this Agreement, Bosch warrants as follows:
- 9.2.1 Bosch has the corporate power and authority to enter into, and perform its obligations under this Agreement;
- 9.2.2 Bosch represents and warrants to the Client that it shall perform the Services using personnel of required skill, experience and qualifications and in a professional and workmanlike manner.
- 9.3 Limited Remedy. The warranty in Section 9.2.2 above is given by Bosch subject to the following:
- 9.3.1 Bosch shall not be liable for a breach of the warranty set forth in Section 9.2.2 unless the Client gives written notice of the defective Services, reasonably described, to Bosch within sixty (60) days from the date when the

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Client discovered or should have discovered that the Services were defective.

9.3.2 Subject to Section 9.3.1, Bosch shall, in its sole discretion, either:

(a) repair or re-perform such affected Services (or the defective part); or

(b) credit or refund the Charge for the affected Services at the pro rata rate, calculated as the number of days in a month that the Services were working divided by the total number of days in that month.

9.3.3 THE REMEDIES SET FORTH IN SECTION 9.3.2 SHALL BE THE CLIENT'S SOLE AND EXCLUSIVE REMEDY AND BOSCH'S ENTIRE LIABILITY FOR ANY AND ALL BREACHES OF THE LIMITED WARRANTY SET FORTH IN SECTION 9.2.2.

9.4 Non-Payment. Bosch will have no liability under the warranty in Section 9.2.2 (or any other warranty) if the total Charges for the Services have not been paid by the applicable due date.

9.5 Non-Bosch Services. The warranty in Section 9.2.2 does not extend to services that are not expressly provided by Bosch under this Agreement.

9.6 Associated Equipment. For the avoidance of doubt, the warranty in Section 9.2.2 does not pertain to the Associated Equipment, which is governed by the terms and conditions of separate written agreements.

9.7 Disclaimers – General.

9.7.1 THE SERVICES AND BOSCH MATERIALS ARE PROVIDED “AS IS”, “WITH ALL FAULTS” AND “AS AVAILABLE” AND THE BOSCH INDEMNIFIED PARTIES EXPRESSLY DISCLAIM ANY AND ALL WARRANTIES AND CONDITIONS OF ANY KIND (EXCEPT FOR THE EXPRESS WARRANTIES AND COVENANTS MADE IN THIS SECTION 9), WHETHER EXPRESS OR IMPLIED, STATUTORY OR OTHERWISE, INCLUDING ANY AND ALL WARRANTIES OF TITLE, MERCHANTABILITY, FITNESS FOR A

PARTICULAR PURPOSE, ACCURACY, SATISFACTORY QUALITY, QUIET ENJOYMENT, TITLE, NON-INFRINGEMENT OR OTHER WARRANTY ARISING OUT OF THE COURSE OF ORDINARY PERFORMANCE, COURSE OF DEALING, OR USAGE OF TRADE REGARDING OR RELATING TO MATTERS COVERED UNDER THIS CONTRACT, INCLUDING WITH RESPECT TO THE SERVICES AND BOSCH MATERIALS.

9.7.2 THE BOSCH INDEMNIFIED PARTIES DO NOT WARRANT THAT:

(A) THE SERVICES OR CONTENT PURCHASED, ACCESSED OR OTHERWISE OBTAINED THROUGH THE SERVICES BY THE CLIENT OR BY ANY OF ITS END USERS WILL: (I) MEET THE CLIENT'S OR ANY OF ITS END USER'S REQUIREMENTS; (II) BE UNINTERRUPTED, TIMELY, SECURE, COMPLETE, OR ERROR-FREE; (III) ACHIEVE ANY INTENDED RESULTS, (IV) MEET THE CLIENT'S OR ANY OF ITS END USER'S EXPECTATIONS, OR (V) WORK WITH ANY OTHER EQUIPMENT, DEVICES, SOFTWARE, APPLICATIONS, SYSTEMS OR SERVICES; OR

(B) THE RESULTS THAT MAY BE OBTAINED FROM THE ACCESS OR USE OF THE SERVICES, OR CONTENT, ACCESSED OR OTHERWISE OBTAINED BY THE CLIENT OR ANY OF ITS END USERS WILL BE ACCURATE OR RELIABLE; OR

(C) ANY ERRORS IN THE SERVICES OR CONTENT, ACCESSED OR OTHERWISE OBTAINED BY THE CLIENT OR ANY OF ITS END USERS WILL BE CORRECTED.

9.7.3 CLIENT ASSUMES ALL RESPONSIBILITY AND RISK OF USE WHEN CLIENT OR ANY THIRD PARTY INSTALL, SETUP OR USE BOSCH PRODUCTS, ASSOCIATED EQUIPMENT AND THE MOBILE APPS.

9.7.4 CLIENT UNDERSTANDS THAT CLIENT IS RESPONSIBLE FOR IMPLEMENTING SUFFICIENT PROCEDURES TO SATISFY THE

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CLIENT'S ANTI-VIRUS PROTECTION AND ACCURACY OF DATA INPUT AND OUTPUT, AND FOR MAINTAINING A MEANS EXTERNAL TO THE SERVICES FOR RECONSTRUCTION OF LOST CONTENT. BOSCH INDEMNIFIED PARTIES WILL NOT BE LIABLE FOR ANY LOSSES CAUSED BY A DISTRIBUTED DENIAL-OF-SERVICE ATTACK, EAVESDROPPERS, HACKERS, INTERCEPTORS, VIRUSES OR OTHER TECHNOLOGICALLY HARMFUL MATERIAL THAT MAY INFECT OR OTHERWISE DAMAGE THE CLIENT'S COMPUTER EQUIPMENT, COMPUTER PROGRAMS, CLIENT CONTENT OR OTHER PROPRIETARY MATERIAL DUE TO THE CLIENT'S USE OF THE SERVICES OR THE CLIENT'S ACCESSING OR DOWNLOADING OF ANY MATERIAL AVAILABLE THROUGH THE SERVICES.

- 9.8 Disclaimers – No Representations. BOSCH'S EMPLOYEES, AGENTS, BOSCH SUBCONTRACTORS AND THIRD PARTY PROVIDERS ARE NOT AUTHORIZED TO MAKE, AND BOSCH DOES NOT MAKE, ANY EXPRESS OR IMPLIED REPRESENTATIONS CONCERNING THE SERVICES OR THE BOSCH MATERIALS, OR ANY OTHER SERVICES PROVIDED UNDER THIS AGREEMENT, UNLESS EXPRESSLY SET FORTH HEREIN. IN ENTERING INTO THE AGREEMENT THE CLIENT ACKNOWLEDGES THAT IT DOES NOT RELY ON ANY REPRESENTATIONS OF THE SERVICES OR THE BOSCH MATERIALS THAT ARE NOT EXPRESSLY SET FORTH HEREIN.

- 9.9 Disclaimers – Acts or Omissions of Client. NOTWITHSTANDING ANY OTHER PROVISION IN THE AGREEMENT AND WITHOUT LIMITATION OF ANY OF BOSCH'S OTHER DISCLAIMERS HEREIN, BOSCH WILL NOT BE RESPONSIBLE FOR FAILURE TO PROVIDE THE SERVICES TO THE EXTENT THAT SUCH FAILURE IS THE RESULT OF THE ACT OR OMISSION OF THE CLIENT, INCLUDING:

(A) NOT OPERATING THE SERVICES IN CONFORMANCE WITH INSTALLATION, TECHNICAL,

ENVIRONMENTAL, MECHANICAL OR ELECTRICAL REQUIREMENTS OR WITHIN THERMAL STRESS LIMITS;

(B) TO THE EXTENT THAT ANY MALFUNCTION OF THE SERVICES IS THE RESULT OF MISUSE, ABUSE, VANDALISM, NEGLECT, IMPROPER INSTALLATION OR APPLICATION, ALTERATION, ACCIDENT OR NEGLIGENCE IN THE USE, STORAGE, TRANSPORTATION, OR HANDLING OF THE ASSOCIATED EQUIPMENT;

(C) CLIENT'S FAILURE TO OBTAIN ALL LEGALLY REQUIRED CONSENTS AND PERMISSIONS FROM RELEVANT PARTIES INCLUDING WITHOUT LIMITATION END USERS IN ORDER TO PERMIT BOSCH TO PROVIDE THE SERVICES OR TO EXERCISE ITS RIGHTS HEREUNDER; OR

(D) THE FAILURE BY THE CLIENT TO IMPLEMENT RECOMMENDATIONS, IN RESPECT OF OR FOR SOLUTIONS TO, PROBLEMS OR ISSUES PREVIOUSLY ADVISED TO CLIENT OR CLIENT'S SUBCONTRACTORS BY BOSCH.

- 9.10 Disclaimers - No Guarantee. EVEN IF THE SERVICES ARE TESTED AND THE ASSOCIATED EQUIPMENT IS OPERATING IN ACCORDANCE WITH SPECIFICATIONS, THERE CAN BE NO GUARANTEE THAT IT WILL NOT BE COMPROMISED OR CIRCUMVENTED OR THAT IT WILL PROVIDE ADEQUATE WARNING IN ANY GIVEN SITUATION, OR THAT IT WILL PREVENT ANY PERSONAL INJURY OR PROPERTY LOSS BY BURGLARY, ROBBERY, FIRE OR OTHERWISE. NOTWITHSTANDING THE USE OF THE SERVICES AND ASSOCIATED EQUIPMENT, DUE TO THE VERY NATURE OF COMMUNICATIONS TECHNOLOGIES, THERE MAY BE TIMES WHEN THE SERVICES ARE UNABLE TO MAINTAIN CONTACT WITH END USERS' OR CLIENT'S ASSOCIATED EQUIPMENT OR MAY NOT BE ABLE TO RE-TRANSMIT A MESSAGE TO OR FROM END USERS AND CLIENTS. YOU UNDERSTAND THAT PROPERLY INSTALLED AND MAINTAINED ASSOCIATED EQUIPMENT AND SERVICES, MAY ONLY REDUCE THE RISK OF A BURGLARY, ROBBERY, FIRE OR

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OTHERWISE OCCURRING WITHOUT PROVIDING AN ALARM, BUT IT IS NOT INSURANCE OR A GUARANTY THAT SUCH WILL NOT OCCUR OR THAT THERE WILL BE NO PERSONAL INJURY OR PROPERTY LOSS AS A RESULT. CONSEQUENTLY, BOSCH AND THE THIRD PARTY PROVIDERS SHALL HAVE NO LIABILITY FOR ANY PERSONAL INJURY, PROPERTY DAMAGE OR ANY OTHER LOSS BASED ON A CLAIM THAT THE SYSTEM OR SERVICES FAILED TO GIVE WARNING. FOR ALL THESE REASONS, CLIENT AND END USERS ARE RESPONSIBLE FOR MAINTAINING APPROPRIATE CAUTION, AND INSURING LIFE AND PROPERTY WITH THE TYPES AND AMOUNTS OF INSURANCE END USERS AND CLIENT DEEM APPROPRIATE.

- 9.11 Disclaimers – Third Party Products and Services. THE CLIENT ACKNOWLEDGES AND AGREES THAT: (A) THE USE AND AVAILABILITY OF THE SERVICES ARE DEPENDENT UPON THIRD PARTY PROVIDERS, (B) THIRD PARTY SERVICES MAY NOT OPERATE IN A RELIABLE MANNER AND THEY MAY IMPACT THE WAY THAT THE SERVICES OPERATE OR INTEROPERATE WITH ASSOCIATED EQUIPMENT, AND (C) BOSCH MAKES NO REPRESENTATIONS OR WARRANTIES ABOUT (I) THE OPERATION, SAFETY OR RELIABILITY OF ANY THIRD PARTY SERVICES OR ANY THIRD PARTY PROVIDERS, OR (II) SUGGESTIONS OR RECOMMENDATIONS OF THIRD PARTY SERVICES OR PRODUCTS OFFERED OR PURCHASED THROUGH THE SERVICES.

CLIENT EXPRESSLY UNDERSTANDS AND AGREES THAT IT HAS NO CONTRACTUAL RELATIONSHIP WHATSOEVER WITH THE UNDERLYING WIRELESS SERVICE PROVIDER VERIZON OR ITS AFFILIATES OR CONTRACTORS AND THAT CLIENT IS NOT A THIRD PARTY BENEFICIARY OF ANY AGREEMENT BETWEEN BOSCH AND THE UNDERLYING CARRIER VERIZON. IN ADDITION, CLIENT ACKNOWLEDGES AND AGREES THAT THE UNDERLYING CARRIER VERIZON AND ITS AFFILIATES AND CONTRACTORS SHALL HAVE NO LEGAL, EQUITABLE OR OTHER LIABILITY OF ANY KIND TO CLIENT AND CLIENT HEREBY WAIVES ANY AND CLAIMS OR DEMANDS THEREFOR.

- 9.12 Additional Client Warranties. Client warrants, represents and agrees that Client will not contribute any Content or otherwise use the Services in a manner that (i) infringes or violates the intellectual property rights or proprietary rights, rights of publicity or privacy, or other rights of any third party; (ii) violates any law, statute, ordinance or regulation; (iii) is harmful, fraudulent, deceptive, threatening, abusive, harassing, tortious, defamatory, vulgar, obscene, libelous, or otherwise objectionable; (iv) impersonates any person or entity, including any employee or representative of Bosch; (v) contains a virus, trojan horse, worm, time bomb, or other harmful computer code, file, or program; (vi) jeopardizes the security of the Client Account or anyone else's account (such as allowing someone else to log in to the Services as the Client); (vii) attempts, in any manner, to obtain the password, account, or other security information from any other user; (viii) violates the security of any computer network, or cracks any passwords or security encryption codes; (ix) runs Maillist, Listserv, or any form of auto-responder or "spam" on the Services, or any processes that otherwise interfere with the proper working of the Services (including by placing an unreasonable load on the Services' infrastructure); (x) copies or stores any significant portion of the Content; or (xi) decompiles, reverse engineers, or otherwise attempts to obtain the source code or underlying ideas or information of or relating to the Services.

SECTION 10 INDEMNIFICATION

- 10.1 Indemnification. The Client shall indemnify and hold each of the Bosch Indemnified Parties harmless against all third party Claims and related Losses arising out of or in connection with (a) the Client's or any End User's use of the Services or the Bosch Materials in violation of this Agreement or applicable Law including any unintended or unauthorized uses; (b) the Client's breach of any of its obligations under this Agreement; (c) Client's relationship with any of its End Users including the Client-End User Agreement and any dispute with an End User; (d) the Client's or an End User's alleged or actual violation, misuse or misappropriation of (i) Bosch's proprietary rights or Intellectual Property Rights, or (ii) any third party rights in the Services, Bosch Materials or any Content; (e) Client Content; (f) the Associated Equipment (even if used independently from the Services) or any disabling of any Associated Equipment by Client or an End User; (g) any security breach of the Client Systems where the Client has reason to believe that there has been unauthorized access to the Services or Client

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Content; (h) any unauthorized representation or claim regarding the Services or the Bosch Materials or Associated Equipment made by or on behalf of Client; (i) Client's or End User's use of the Services in connection with the Client's Systems or other products, services or technology not supplied by Bosch; or (j) the Client's wrongful or unauthorized cancellation of any Order.

- 10.2 Indemnification Process. Bosch reserves the right, at the Client's expense, to assume the exclusive defense and control of any matter for which the Client is required to indemnify Bosch and the Client shall to cooperate with Bosch's defense of such claims. The Client shall not to settle any such claim without Bosch's prior written consent. Bosch will use reasonable efforts to notify the Client of any such claim, action or proceeding upon becoming aware of it.

SECTION 11 LIMITATIONS ON LIABILITY

- 11.1 Exclusion of Certain Losses. EXCEPT FOR BOSCH'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT AND TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN ADDITION TO THE WARRANTY DISCLAIMERS HEREIN, IN NO EVENT WILL ANY BOSCH INDEMNIFIED PARTY BE LIABLE FOR ANY DIRECT, INDIRECT, CONSEQUENTIAL, EXEMPLARY, SPECIAL, OR INCIDENTAL LOSSES, OR ANY LOSSES IN CONNECTION WITH:

- (A) LOST CONTENT (INCLUDING DUE TO UNAUTHORIZED DISCLOSURE, ACCESS TO, OR PROCESSING OF, PERSONAL DATA);
- (B) LOST PROFITS, LOSS OF GOODWILL OR LOSS OF BUSINESS;
- (D) LACK OF SECURITY, INVASION OR LACK OF PRIVACY, VIOLATION OF THE RIGHT OF PUBLICITY, DEFAMATION;
- (E) ANY PERSONAL OR BODILY INJURY, DEATH, PROPERTY DAMAGE;
- (G) ANY INTERRUPTION, DELAY, FAILURE, DISRUPTION, DOWNTIME, LIMITED ACCESS TO, UNAVAILABILITY, UNRELIABILITY OR NON-PERFORMANCE OF THE SERVICES OR BOSCH MATERIALS;
- (H) ANY THIRD PARTY SERVICES;

- (I) ANY INVESTMENTS, EXPENDITURES OR COMMITMENTS RELATED TO USE OF OR ACCESS TO THE SERVICES OR BOSCH MATERIALS; COST OF PROCUREMENT OF SUBSTITUTE GOODS OR SERVICES; COST OF REPLACEMENT OR RESTORATION OF ANY COMPROMISED CONTENT; OR
- (J) ANY ERRORS OR OMISSIONS IN ANY CONTENT, FOR USE OF OR EXPOSURE TO ANY CONTENT POSTED, OR IN CONNECTION WITH THE ACCURACY, NON-INFRINGEMENT, LEGALITY, SECURITY OR DECENCY OF CONTENT, WHETHER ACCESSED, TRANSMITTED, STORED OR OTHERWISE MADE AVAILABLE VIA THE SERVICES OR THE BOSCH MATERIALS.

SUBSECTIONS (A) THROUGH (J) ABOVE, COVER LOSSES OCCURRING BY ANY MEANS OR MANNER, AND EVEN IF BOSCH KNEW OR SHOULD HAVE KNOWN OF THE POSSIBILITY OF SUCH DAMAGES.

- 11.2 Limitation of Direct Losses. BOSCH'S TOTAL CUMULATIVE LIABILITY ARISING FROM OR RELATED TO THE SERVICES, WHETHER IN CONTRACT OR TORT OR OTHERWISE, SHALL NOT EXCEED THE LESSER OF (A) THE CHARGES ACTUALLY PAID BY THE CLIENT TO BOSCH AT ISSUE IN THE PRIOR 12 MONTHS (IF ANY), OR (B) FIFTY THOUSAND DOLLARS (US\$50,000), WHICH WILL BE THE CLIENT'S SOLE AND EXCLUSIVE REMEDY, WITH NO FURTHER LIABILITY TO BOSCH OR ANY BOSCH INDEMNIFIED PARTY. THIS LIMITATION IS CUMULATIVE AND WILL NOT BE INCREASED BY THE EXISTENCE OF MORE THAN ONE INCIDENT OR CLAIM. BOSCH DISCLAIMS ALL LIABILITY OF ANY KIND OF BOSCH'S THIRD PARTY PROVIDERS. THE CLIENT'S RECOVERY IF ANY WILL BE LIMITED TO ACTUAL AND DIRECT DAMAGES. NOTWITHSTANDING THE ABOVE, FOR BREACH OF ANY PROVISION FOR WHICH AN EXPRESS REMEDY OR MEASURE OF DAMAGES IS PROVIDED UNDER THIS CONTRACT, SUCH EXPRESS REMEDY OR MEASURE OF DAMAGES SHALL BE THE CLIENT'S SOLE AND EXCLUSIVE REMEDY. BOSCH'S LIABILITY AND THE CLIENT'S

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RECOURSE SHALL BE LIMITED AS SET FORTH IN SUCH PROVISION AND ALL OTHER REMEDIES OR LOSSES AT LAW OR IN EQUITY ARE WAIVED. TO THE EXTENT ANY DAMAGES REQUIRED TO BE PAID UNDER THIS CONTRACT ARE LIQUIDATED, THE CLIENT ACKNOWLEDGES THAT THE LOSSES ARE DIFFICULT OR IMPOSSIBLE TO DETERMINE, OR OBTAINING AN ADEQUATE REMEDY IS OTHERWISE INCONVENIENT, AND THE LOSSES CALCULATED THEREUNDER CONSTITUTE A REASONABLE APPROXIMATION OF THE HARM OR LOSS. THE CLIENT CONFIRMS THAT THE EXPRESS REMEDIES AND MEASURE OF LOSSES SATISFY THE ESSENTIAL PURPOSES THEREOF.

SECTION 12 MISCELLANEOUS

- 12.1 Entire Agreement. This Agreement constitutes the entire agreement between the Parties, supersedes any previous agreement or understanding and may not be varied except in writing between the Parties. All other terms, express or implied by statute or otherwise, are excluded to the fullest extent permitted by Law.
- 12.2 Notices. A notice required or permitted to be given by either Party to the other under these terms and conditions shall be in writing addressed to the other Party at the principal place of business listed on the first page of this Agreement. Either Party may change its address upon notice. .
- 12.3 Waiver. No failure or delay by either Party in exercising any of its rights under the Agreement shall be deemed to be a waiver of that right, and no waiver by either Party of any breach of the Agreement by the other shall be considered as a waiver of any subsequent breach of the same or any other provision. Other than as expressly stated herein, the remedies provided herein are in addition to, and not exclusive of, any other remedies of a Party at Law or in equity.
- 12.4 Severability. In the event that any provision of this Agreement is found to be unenforceable, such provision will be reformed only to the extent necessary to make it enforceable, and the remainder will continue in effect, to the extent consistent with the intent of the parties as of the Effective Date.
- 12.5 Counterparts. The Agreement may be entered into in any number of counterparts and by the Parties to it on separate counterparts, each of which when so executed and delivered shall be an original.
- 12.6 Third-Party Beneficiaries. Except for the Bosch Indemnified Parties or as otherwise expressly stated in this Agreement, there are no third-party beneficiaries of this Agreement. The representations, warranties, covenants, and agreements contained in this Agreement are for the sole benefit of the Parties and their respective successors and permitted assigns, and they are not to be construed as conferring any rights on any other persons.
- 12.7 Force Majeure. Neither Party will be deemed to be in default or breach of this Agreement in the event that its delay or failure to perform under this Agreement is due to an event or occurrence beyond the reasonable control of such Party, including an act of God, war, insurrection, riot, terrorist attack, civil disorder, unrest or disturbance, martial law, quarantine, embargo, rationing or other similar or unusual governmental action or restriction; epidemics, quarantines; fire, flood, drought, earthquake (other than localized inclement weather); labor strikes or stoppages, failure of facilities or systems, any natural or man-made disaster or other cause of like nature that is beyond the reasonable control of such Party, other than insolvency, lack or insufficiency of funds or unavailability of credit.
- 12.8 Assignment. Bosch may assign this Agreement. The Client may not assign any of its rights or delegate any of its duties under the Agreement without the prior written consent of Bosch.
- 12.9 Publicity. Client shall not issue any press release or public announcement concerning this Agreement without obtaining the prior written approval of Bosch. Notwithstanding the foregoing sentence, Bosch may use the Client's name and logo in connection with sales and marketing activities.
- 12.10 Amendment. Bosch reserves the right to change the terms and conditions of this Agreement at any time (including by amending any of its provisions, adding new provisions, or deleting or modifying existing provisions). Client's continued use of the Services and the Bosch Materials shall be deemed to be your acceptance of this Agreement, as modified. .
- 12.11 Governing Law. ALL DISPUTES, CLAIMS OR CONTROVERSIES ARISING OUT OF THIS CONTRACT, OR THE NEGOTIATION, VALIDITY OR PERFORMANCE OF THIS

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CONTRACT, OR THE TRANSACTIONS CONTEMPLATED HEREBY SHALL BE GOVERNED BY AND CONSTRUED IN ACCORDANCE WITH THE LAWS OF THE STATE OF MICHIGAN WITHOUT REGARD TO ITS RULES OF CONFLICT OF LAWS. The provisions of the United Nations Convention on Contracts for the International Sale of Goods are hereby excluded and shall not apply to this Agreement. In the event suit is commenced to enforce this Agreement or otherwise relating to this Agreement, the prevailing parties will be entitled to reasonable attorney's fees and costs incurred in connection therewith.

covenants that it will not remove from the United States, or otherwise export or re-export any of the Services provided hereunder, except in accordance with United States and other applicable export Laws and regulations, including, without limitation, the Export Control Act 2002, the Dual Use Items (Export Control) Regulations 2000, and the export Laws applied by U.S. Department of Commerce.

12.12 Dispute Resolution. CLIENT AND BOSCH AGREE THAT, THE SOLE AND EXCLUSIVE FORUM AND REMEDY FOR ANY AND ALL DISPUTES AND CLAIMS RELATING IN ANY WAY TO OR ARISING OUT OF THIS AGREEMENT, THE SERVICES AND THE BOSCH MATERIALS SHALL BE FINAL AND BINDING ARBITRATION. Client and Bosch agree to submit all disputes between you and Bosch arising out of or relating to the Service, these Terms and Conditions or the Privacy Statement or the alleged breach or interpretation thereof, to binding arbitration, *provided* that the foregoing shall not prevent Bosch from seeking injunctive relief in a court of competent jurisdiction. Within thirty (30) days after either party has notified the other in writing that it is submitting a dispute to arbitration, one arbitrator shall be chosen under the then current Rules of the American Arbitration Association (“AAA”) pertaining to commercial disputes (“Rules of the AAA”). The arbitration will be held in Southfield, Michigan, and will be conducted according to the Rules of the AAA. These Terms and Conditions of Service, the Privacy Policy and the arbitration agreement shall be governed by the laws of the State of Michigan, without regard to its conflicts of law provisions. The arbitration award shall be by a written decision containing findings of fact and conclusions of law, shall be final and binding and may be enforced by any court of competent jurisdiction. The party prevailing in the arbitration or other legal proceedings is entitled to recover its litigation costs, including reasonable attorney's fees. In no case shall the arbitrator be authorized to award costs and damages otherwise prohibited herein.

12.14 Survival. Any provision of this Agreement that contemplates or governs performance or observance subsequent to termination or expiration of this Agreement shall survive the expiration or termination of this Agreement for any reason.

12.13 No Export. The Client represents, warrants and

Schedule E

BOSCH DATA SERVICES ACCEPTABLE USE POLICY

The Services are made available on the basis that the Client shall:

1. Not use Services for any improper, immoral or unlawful purposes, nor allow others to do so;
2. Not act or knowingly permit others to act in such a way that the operation of the Network or the Services will be jeopardized or impaired;
3. Use Associated Equipment approved for use with the Network as specified in the Minimum Requirements (Schedule C) and in accordance with all relevant documentation and legislation or regulation relating to its use in any jurisdiction;
4. Not be involved in or knowingly, recklessly or negligently permit any other party to be involved in any fraudulent or other unauthorized or attempted use, access, alteration, interference of any Services, Bosch Materials and Associated Equipment and usage of Services by other End Users including with the intent of avoiding payment of any Charges, and to notify Bosch immediately upon the Client becoming aware of or suspecting such activity;
5. Use the Services including Associated Equipment, in accordance with the specifications provided by Bosch, including technical and mechanical specifications;
6. Not knowingly, recklessly or negligently permit any lost or stolen Associated Equipment to be connected to the Network and shall adhere to any procedures issued by Bosch from time to time in relation to lost or stolen Associated Equipment or Associated Equipment that has not been authorized by Bosch, and any and all claims in respect thereof;
7. Comply with all reasonable or necessary directions and instructions issued by Bosch which concern the Client's and/or End Users' use of the Services;
8. Accept that the Services are only available to offer to End Users located within the Coverage Area;
9. Obligate the End Users not to use abusive or threatening behavior towards other users of the Network or members of Bosch's staff;
10. Not knowingly, recklessly or negligently allow any person to reverse engineer, de-compile, rearrange, tamper with or modify any software accessible as part of the Services or the Cellular Connections contained within, or in connection with the Associated Equipment in any way, including by making an unauthorized connection with any facilities of a Third Party Provider;
11. Not, and will ensure that End Users do not, use, encourage, promote, facilitate or instruct others to use, the Services for any illegal, harmful or offensive use, in violation of applicable Law or to transmit, store, display, distribute or otherwise make available Content that is illegal, harmful or offensive or does not comply with Bosch's Third Party Providers' policies, which may change from time to time and can be found on the Third Party Provider Websites;
12. Not, and will ensure that End Users do not, use the Services to violate the security or

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integrity of any network, computer or communications system, software application, or network or computing device;

13. Not, and will ensure that End Users do not, make Network connections to any users, hosts or networks unless Client has permission to communicate with them;
14. Not install any amplifiers, enhancers, repeaters or other devices that modify the radio frequencies used to provide the Services in a manner that renders such conveyance unlawful; and
15. Not, and will ensure that End Users do not, use the Services to: distribute, publish, send or facilitate the sending of unsolicited mass email or other messages, promotions, advertising or solicitations (such as “spam”), including commercial advertising and informational announcements. Client will not alter or obscure mail headers or assume a sender’s identity without the sender’s explicit permission.